

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: The Slovak Republic

Organization or entity responsible for the preparation of the report: The Ministry of Education, Science, Research and Sport

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²****Is your country a State Party to the Convention?**

Yes – Slovakia ratified the UNESCO Convention against Discrimination in Education on 31/03/1993

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

² http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

³ http://portal.unesco.org/en/ev.php-URL_ID=15321&URL_DO=DO_TOPIC&URL_SECTION=201.html

☐ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☒ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

The provisions of the Convention are guaranteed by national legal instruments:

Constitution of the SR no. 460/1992

Art. 12, (1) People are free and equal in dignity and rights. Fundamental rights and freedoms are inalienable, inalienable, inalienable and irrevocable.

Art. 42 (1) Everyone has the right to education. School attendance is compulsory. Its length up to the age limit is determined by law.

Art. 42 (2) Citizens have the right to free education in primary schools and secondary schools, according to the abilities of the citizen and the possibilities of society also at universities.

More details in Annex. I.3.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☒ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

According to Act no. 542/1990 Coll. on state administration in education and school self-government is established according to § 8a par. 5 State School Inspection, whose mission is primarily to conceptually ensure inspection activities that fulfill the function of state control over the level of pedagogical and professional management, over the level of education, personnel and material and technical conditions of work of state and non-state schools, school facilities. The task of the inspection is to carry out control and evaluation of compliance with generally binding legal regulations concerning educational activities, etc. It also has a role to investigate and deal with complaints and petitions concerning pedagogical and professional management.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?
☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☐ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☐ Combatting discrimination in terms of curriculum
- ☐ Other:

*Constitution of the Slovak Republic no. 460/1992
Act no. 245/2008 Coll. on Education (School Act) and on Amendments to Certain Acts
Act no. 365/2004 Coll. on Equal Treatment in Certain Areas and on Protection against Discrimination and on Amendments to Certain Acts (Anti-Discrimination Act)
Act No. 131/2002 Higher Education - The rights established by this Act are equally guaranteed to all applicants and students in accordance with the principle of equal treatment in education established by a special law. In accordance with the principle of equal treatment, discrimination on the grounds of age, sex, sexual orientation, marital*

4 Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

5 See: Article/Paragraph 1(1).

status and marital status. Race, colour, disability, language, political or other opinion, membership of a national minority, religion or belief, trade union activity, national or social origin, property, gender or other status is prohibited.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

*Act no. 245/2008 Coll. on Education (School Act) and on Amendments to Certain Acts
§ 19 Compulsory school attendance*

*(1) No one may be exempted from compulsory school attendance.
(2) Compulsory school attendance is ten years and lasts until the end of the school year in which the pupil reaches the age of 16, unless this law provides otherwise.
(3) Compulsory school attendance shall begin at the beginning of the school year following the the child reaches the age of six and achieves school eligibility, unless otherwise provided by this Act.*

§ 20 Fulfillment of compulsory school attendance

(1) Compulsory school attendance is fulfilled in primary schools, secondary schools and schools for pupils with special educational needs according to this Act, if this Act does not provide otherwise.

(2) The child's legal representative is obliged to register the child for the fulfillment of compulsory school attendance in primary school (hereinafter referred to as "enrollment"). Registration takes place from April 1 to April 30, which precedes it at the beginning of the school year in which the child is to start compulsory schooling.

§ 28 Kindergarten (1) Pre-primary education is compulsory for a child who has reached the age of five by 31 August, which precedes the beginning of the school year from which the child will complete compulsory school attendance in primary school.

Act no. 209/2019, which amends Act no. 245/2008 Coll. on Upbringing and Education (School Act) and on Amendments to Certain Acts as Amended and Amending Certain Acts, which will be from 01.01.2021 and which will ensure compulsory pre-primary education for 5-year-old children.

Constitution of the SR no. 460/1992 Coll. - Art. 42 (1)

(1) Everyone has the right to education. School attendance is compulsory. Its length up to the age limit is determined by law.

More details in Annex. II.1.

1.2 *Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):*

- ☒ *Constitutional laws and/or legislation guarantee equal access to education*
- ☒ *Regulations ensure equal access to all levels and types of education*
- ☐ *Policies and programmes ensure equal access to all levels and types of education*
- ☐ *Other:*

Constitution of the SR no. 460/1992

Art. 42 (1) Everyone has the right to education. School attendance is compulsory. Its length up to the age limit is determined by law.

Act no. 365/2004 Coll. on Equal Treatment in Certain Areas and on Protection against Discrimination and on the Amendment of Certain Acts (Anti-Discrimination Act)

§ 2 (1) Compliance with the principle of equal treatment consists in the prohibition of discrimination on grounds of sex, religion or belief, race, nationality or ethnic group,

disability, age, sexual orientation, marital status and marital status, skin color, language, political or other opinion, national or social origin, property, gender or other status, or because of the reporting of crime or other anti-social activity.

Act no. 245/2008 Coll. on Education (School Act) and on Amendments to Certain Acts

§ 3 Principles of education

(j) preparation for responsible life in a free society in the spirit of understanding and tolerance, equality between men and women, friendship between nations, ethnic and ethnic groups and religious tolerance.

§ 4 Objectives of education

h) to prepare for a responsible life in a free society, in a spirit of understanding and tolerance, equality between men and women, friendships between nations, ethnic and ethnic groups and religious tolerance.

The Act No. 131/2002 Higher Education - The rights established by this Act are equally guaranteed to all applicants and students in accordance with the principle of equal treatment in education established by a special law. In accordance with the principle of equal treatment, discrimination on the grounds of age, sex, sexual orientation, marital status and marital status. Race, colour, disability, language, political or other opinion, membership of a national minority, religion or belief, trade union activity, national or social origin, property, gender or other status is prohibited.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

☐ Providing financial incentives and fellowships ☐ Providing positive or affirmative action measures ☐ Ensuring inclusion in mainstream schools for all learners ☐ Training teachers on inclusive education ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) ☐ Providing re-entry programmes for young mothers ☐ Eliminating all barriers for pregnant girls or young mothers in education ☐ Other:	☐ Providing auxiliary assistance ☐ Adapting education infrastructure ☐ Adapting curricula and methods ☐ Providing language classes to newcomers (e.g. refugees) ☐ Eliminating administrative barriers to education ⁷ ☐ Providing flexible learning pathways ☐ Valuing diversity in schools ☐ Combatting stereotyping and stigmatisation
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⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):
Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

X Pre-primary education is compulsory: Please provide the age of enrolment and duration:

With effect from 1 January 2021, under the Act no. 209/2019 Coll., amending and supplementing Act no. 245/2008 Coll. on Training and Education (School Act) and on Amendments to Certain Acts, as amended, and Amending Certain Acts (hereinafter referred to as the "School Act"), shall be for each child who has reached the age of five by 31 August, which precedes the beginning of the school year from which the child will complete compulsory schooling in primary school, pre - primary education compulsory. This legislation will relate to children who reach the age of 5 years by 31 August 2021 and will start compulsory schooling in primary school from the school year 2022/2023. Respecting the fact that it will not be sufficient for all to complete one, compulsory, year of pre-primary education, it will be possible for children who, based on professional examination, to show the fulfillment of compulsory school attendance in primary school continued in the compulsory pre-primary education of a child for another additional school year.

8 Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

X Pre-primary education is free of charge for all: Please provide the duration:

Compulsory pre-primary education is exempt from fees for partial reimbursement of kindergarten expenses. The state provides a lunch allowance to children for whom the pre-primary education is compulsory.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Compulsory pre-primary education is established by the Act no. 245/2008 Coll. on Education and Training (School Act) and on Amendments to Certain Acts, as amended, which will enter into force on 1 January 2021.

According to current statistical data (before the introduction of compulsory pre-primary education), at least one year before compulsory school attendance the kindergarten is attended by almost 93% of children from the population year of children who have one year before compulsory school attendance.

The lowest education of children one year before the fulfillment of compulsory school attendance is in areas with a high concentration of the Roma population. The parents of Roma children often show no interest in their children's pre-primary education.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Is primary education compulsory in your country?

X Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Compulsory school attendance begins at the beginning of the school year following the day when the child reaches the age of six and reaches school eligibility. The compulsory school attendance is ten years and lasts until the end of the school year in which the pupil reaches the age of 16.

- Is primary education available free of charge to all?

X Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Under the § 3 letter b) - h) of Act no. 245/2008 Coll. on Training and Education (School Act) and on Amendments to Certain Acts, as amended (hereinafter referred to as the "School Act"), education and training under this Act are based on the principles:

- free education in primary and secondary schools established by a local state administration body in education, a central government authority or self-government authority (hereinafter referred to as a "state school");
- equality of access to education and training, taking into account the educational needs of the individual and his co-responsibility for their education;
- the prohibition of all forms of discrimination, and in particular segregation; equality and inseparability of education and training in the educational process; lifelong learning; educational counseling;
- free choice of education, taking into account the expectations and premises of children and pupils in accordance with the possibilities of the educational system.

The Slovak Republic is one of the countries with legal compulsory school attendance. Under the Article No. 42 of the Constitution of the Slovak Republic, school attendance is compulsory. The Citizens have the right to free education in primary and secondary schools, according to the abilities of the citizen and the possibilities of society also in universities.

It is possible to establish other schools than state ones and to teach in them only under the conditions stipulated by law; in such schools, education may be provided for a fee.

Under the § 19 par. 1 of the School Act "no one may be excused from compulsory school attendance".

Under the § 144 par. 5 of the School Act, the legal representative has the right to choose for his child a school or school facility that provides education and training according to this Act, corresponding to the child's abilities, health, interests and hobbies, religion, worldview, nationality and ethnicity; the right to freely choose a school or school facility can be exercised in accordance with the possibilities of the educational system.

If we look at the history of compulsory school attendance, the year 1948 is especially important - from 1 September 1948, the Act on the Basic Regulation of Unified Education began to be applied in practice - Regulation no. 95/1948, which established free compulsory primary school attendance for pupils from six to fifteen years of age. Another important milestone in the area of fulfilling compulsory school attendance was the year 2008. In 2008, a curricular reform took place in Slovak education, the aim of which was to improve the quality of education, in terms of taking into account the current requirements of the labor market for school graduates.

One of the basic areas of reform has become the area of pre-primary, primary and secondary education. It is at these levels of education that the most significant learning effects are achieved, on which the whole subsequent life of the child / pupil is based.

Participatory has become the main principle of the transformation of education. The schools themselves entered the curriculum - education and training began according to school curricula, which represent the second stage of the curriculum, after a state curriculum guaranteed by the state and created on the basis of a "state order" to apply state school policy through schools. .

This fulfills the idea of freedom, professional decision-making, as well as increasing the complementary responsibility of teachers in specific schools, taking into account local needs and contexts, ensuring greater addressability and effectiveness of specific school curricula.

The School Act stipulates the obligatory parts of state educational programs as well as the obligatory parts of school educational programs. The curricula of school educational programs must be developed at least within the scope of educational programs of the relevant state educational program approved by the Ministry of Education for individual levels of education in accordance with the current International Standard Classification of Education. The educational standards of the state educational program for the relevant level of education contain a set of requirements for the acquisition of knowledge, skills and abilities that children and pupils have to acquire in order to continue education in the follow-up part of the educational program or to be granted in accordance with the International Standard Classification of Education.

In the Slovak Republic is approved the System Model for the Creation of Curricular Documents including the process of their periodic innovation, which governs the organizations of the Ministry of Education responsible for creating educational content for all levels of education, emphasizing that each state educational program must be developed and innovated to respond on the:

- current social needs,
- changing social, economic and political as well as natural conditions,
- transition of declared values,
- national and European culture,
- evolving scientific knowledge,
- structure and intensity of employment,
- beginning of new and completely different professions and jobs and the disappearance of existing ones
- width, depth, new quality and way of getting to know each other.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ Yes: Please provide the duration and describe the extent to which it is.

Upper secondary education is free of charge (exceptions are some private schools), duration from 2 to 5 years depending on type of education program and achieved level of education:

- *3-years programs (ISCED 353, EQF 3) – certificate of apprenticeship*
- *4-years programs (ISCED 354, EQF 4) – school leaving certificate*
- *4-years programs with extended amount of practical training (ISCED 354, EQF 4) – certificate of apprenticeship and school leaving certificate*
- *5-years programs (ISCED 354, EQF 4) - certificate of apprenticeship and school leaving certificate*
- *5-years programs (ISCED 554, EQF 5) – absolutorium diploma*
- *2-years programs (ISCED 454, EQF 4) – school leaving certificate*
- *2-years programs (ISCED 554, EQF 5) – Diploma specialists, absolutorium diploma*
- *3-years programs (ISCED 554, EQF 5) – Diploma specialists, absolutorium diploma*

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Education Act 245/2008 Coll.

Act on Governance and self-governance of education 596/2003 Coll.

Act on financing elementary, secondary schools and school facilities 597/2003 Coll.

Public, private and church schools are financed by the state via normative financing. All costs covering organization of education, exams, personal costs and running costs are covered by the state. Tuitions, if required by some private schools are paid by parents.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

Lower secondary education (grade 5 – 9 of elementary school) and first year of upper secondary education is part of 10 years compulsory education in Slovakia.

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

2.3

Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

The Act No. 131/2002 Higher Education - The rights established by this Act are equally guaranteed to all applicants and students in accordance with the principle of equal treatment in education established by a special law. In accordance with the principle of equal treatment, discrimination on the grounds of age, sex, sexual orientation, marital status and marital status. Race, colour, disability, language, political or other opinion, membership of a national minority, religion or belief, trade union activity, national or social origin, property, gender or other status is prohibited.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

10 Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

11 See: Article/Paragraph 1(1).

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

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2.4 **Adult education and alternative learning**

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

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- Please elaborate further on the measures taken:

Provision of appropriate learning and life-skills programmes: The Public Employment Services offer KOMPAS programme as means for job seekers to take part in courses that develop their competencies and life-skills. The job seekers can get up to 100% of the costs of the course covered by Public Employment Services. These courses can be focused on the development of selected key competencies - communication skills, personal development, computer skills or language skills.

Provision of professional training and qualifications: In recent years, the Slovak Republic made significant improvements in implementing the National Qualifications System and Slovak Qualifications Framework (SKKR). In November of 2017 the Referencing report of the SKKR to the EQF was adopted and subsequently the relevant adjustments in the system had been made – for example the level of SKKR is now referenced on all diplomas and final documents of education. In the next steps, Slovak Republic now works on developing and implementing of a system of validation of prior learning, to make the existing system more flexible and prepared for the future challenges.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- x Establishment of minimum norms and standards in education
- x Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- x Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

- legislation sets the lowest and highest number of pupils in a class according to the type of school
- the law establishes the rights and obligations of the child, the pupil and his/her legal representative
- the law imposes an obligation on pedagogical staff
 - protect and respect the rights of the child/pupil and his/her legal guardian,
 - maintain confidentiality and protect against misuse of personal data, health information and the results of professional examinations of children/pupils with whom he/she came into contact,
 - respect the individual educational needs of the child/pupil with regard to his/her abilities, possibilities, social and cultural background and recommendations of professional staff,
 - refrain from conduct which leads to an infringement of the rights of other staff,
 - act in accordance with the code of ethics.

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

According to Act no. 245/2008 Coll. on Education and Training (School Act) and on Amendments to Certain Acts (hereinafter referred to as the “School Act”) are education and training based on the principles of equal access to education and training, taking into account the educational needs of the individual and his co-responsibility for his education. According to § 5 of the School Act, training and education in schools and school facilities is carried out according to educational programs. The educational program is a state educational program and a school educational program. The goals of education are built to ensure a balanced development of students' personalities. They contain educational areas and cross-cutting themes. For example, in lower secondary education, the following topics have a cross-cutting character: Personal and social development, Multicultural education, Protection of life and health and others. The innovated State Educational Program is published on the website of the National Institute for Education (<https://www.statpedu.sk/sk/svp/inovovany-statny-vzdelavaci-program/>) according to the level of education.

In accordance with the intention of the National Program for the Development of Education approved by the Resolution of the Government of the Slovak Republic no. 320/2018 and the Implementation Plan of the National Program for the Development of Education and Training is the goal of implementing a measure to provide teaching aimed at effective and targeted prevention of racism, xenophobia, anti-Semitism, extremism and other forms of intolerance: providing calls for development projects "Health and safety in schools" and "Drug prevention", with priorities such as prevention of risky behavior (violence, bullying, truancy, aggression, delinquency, crime, drug addiction, abuse, manifestations of extremism, terrorism, HIV / AIDS, trafficking in human beings, prevention of drug and psychotropic substance use.

The issue of anti-discrimination is regularly updated in the MŠVVaŠ SR and incorporated into materials and activities. In the departmental regulation of the Pedagogical-organizational instructions for each school year, they are in accordance with the intention of the National Program for the Development of Education approved by Government Resolution no. 320/2018 entered more detailed instructions in separate chapters. MŠVVaŠ SR issued directive no. 36/2018 on the prevention and solution of bullying of children and pupils, which regulates the basic features, forms and manifestations of bullying of children and pupils, possibilities of preventive action and methods of solving bullying of pupils in connection with school and school facility responsibilities under the provisions of the Education Act. The directive is effective from 01.09.2018.

Regulation of framework for education binding for all schools – state curriculum.

Obligatory entry exams on upper secondary VET or grammar school.

Centralised external school leaving exams, requirements for teachers and trainers.

The code of ethics is enshrined in law, it contains the basic framework of conduct of a pedagogical employee and a professional employee; it is published by the Ministry on its website.

For more details, see Annex to 2 5.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

- the salaries of teaching and professional staff are regularly increasing, nevertheless they are not yet at a competitive or comparable level with other professions requiring similar or equivalent qualifications,

- *the law regulates the system of professional development - career levels, further education in professional development,*
- *qualification requirements set by law and decree, professional standards issued by a resolution of the Minister,*
- *protection of rights - a pedagogical employee and a professional employee have the status of a protected person during the performance of their work; moral appreciation of pedagogical and professional staff, increase in salaries of beginning pedagogical and professional staff,*
- *the system of evaluation of pedagogical and professional staff set by law, measures to increase the number of women in leadership positions in education are not needed, due to the high proportion of women in education, including members of school management.*

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

X No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

x Curriculum includes human rights education

x Educational and/or extracurricular activities are organized on human rights education

x Other:

The issue of human rights, i.e. protection and support of human rights in the Slovak Republic is regularly updated and incorporated into materials and activities in the Ministry of Education, Science, Research and Sport of the Slovak Republic (hereinafter referred to as the "MŠVVaŠ SR").

The National Program for the Development of Education for the period 2018-2027 with its Implementation Plan was approved by the Government of the Slovak Republic by a resolution and reflects on the recommendations of the UN Human Rights Council in Geneva resulting from its periodic evaluation. One of the cross-cutting priorities is the integration and inclusion of marginalized communities and students from socially disadvantaged backgrounds.

The Committee for Research, Education and Training in the Field of Human Rights and

12 Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

Development Education, whose secretariat operates at the Ministry of Education of the Slovak Republic, is active under the advisory body of the Government of the Slovak Republic to the Human Government, National Minorities and Gender Equality.

MŠVVaŠ SR as well as the directly managed organization the National Institute for Education cooperates with the Slovak National Center for Human Rights in the field of children's rights. It implements the principles and principles of the Convention on the Rights of the Child, including Optional Protocols (Optional Protocol on the Participation of Children in Armed Conflict, Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography) into an innovated State Education Program (ISP) at all levels of education in selected subjects (especially civics, history, ethical / religious education, cross-sectional topic Multicultural education). The curriculum of these subjects is focused on the development of value competencies - respect for human dignity and human rights, children's rights, respect for cultural diversity, respect for democracy, justice, equality and the law.

According to §4 of Act no. 138/2019 Coll. on Pedagogical Employees (PZ) and Professional Employees (OZ) and on Amendments to Certain Acts of 10.05.2019 are among the obligations of PZ and OZ to protect and respect the rights of the child, pupil, listener and his / her legal representative and also to act in accordance with the Code of Ethics PZ and OZ.

In the education sector, in accordance with §13 of Act no. 596/2003 Coll. on state administration in education and school self-government established the State School Inspectorate, which in its activities also deals with discrimination and respect for human rights and regularly publishes a Report on the state and level of education in schools and school facilities in the Slovak Republic for each school year school year 2019/2020 link: https://www.ssiba.sk/default.aspx?text=g&id=3&lang=sk#2019_2020).

The Center for Scientific and Technical Information of the Slovak Republic (hereinafter "CVTI") as one of the directly managed organizations of the Ministry of Education, Science, Research and Sport of the Slovak Republic carries out research within long-term monitoring of education and application of human rights in connection with the implementation of the National Strategy for Human Rights Protection and Support in the Slovak Republic.

Presentations of the results of research and surveys of CVTI can be found at: https://www.cvtisr.sk/cvti-sr-vedecka-kniznica/informacie-o-skolstve/vyskumy-a-prevencia/vyskumy-mladeze.html?page_id=10281

For more details, see Annex to 2_7.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

The Slovak education system is diverse, with both public and non-public (religious/church and private) school providers. Non-state education is composed of private and church schools. According to the present legislation private schools and school facilities may be established by natural persons and legal entities. The constitution of church schools is allowed to the registered churches and religious societies.

Church and other private providers receive public funding on a similar basis to state schools. The school network is defined in the Slovak Republic as the totality of schools formally accredited by the Ministry of Education, Science, Research and Sports of the Slovak Republic to provide education and care in the country.

Private and church founders must also enclose the approval obtained either from the

municipality (in the case of pre-primary and basic schools) or the self-governing region (in the case of upper secondary schools) in their application for accreditation. Without this approval the Ministry cannot give consent to private and church schools and include them in the school network. After being accredited private and church schools and school facilities are equal units of educational system providing education equivalent to that of public schools. The legal status of private schools and school facilities is defined by the founder, within the scope of generally binding provisions of the education law; in professional-educational questions they are managed and checked up by the Ministry.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☒

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The Slovak Constitution declares the right claim to establish schools other than state schools.

The Act on Training and Education (School Act) from 2008 defined principles of education and training. Under the School Act, education and training is also based on the principle of equality of all schools and school facilities without distinction of their founders.

One of the key objectives of the school system is to ensure that all children and students, irrespective of their social and economic status, gender, ethnicity, native language and other differences, have equal opportunities to make use of their potential and receive a high quality education.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

The School Act declares that in schools it is permitted to teach religious education and religion and also are there the possibility of alternating with ethical education.

The specificities on organisation and management of Roman-Catholic schools and school facilities are defined by the Basic Agreement between the Slovak Republic and Holy See, the position, organisation and activity of other church schools is likewise defined by the Agreement between the SR and Registered churches.

The Agreements with the churches in the field of education acknowledged to the churches the right to freely perform their religious mission, to teach the profession, the right and duty of parents to religious education of their children and to free choice of the school, also the right to establish schools and school facilities, administer and use for education and the basic, secondary education institutions. The Slovak Republic binds itself through the Agreements to create inevitable conditions and to provide religious education to pupils at all schools and school facilities and to apply the principles of religious tolerance.

2.9 Rights of national minorities

13 See: Article/Paragraph 1(1).

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☒ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs
- ☒ Other:

*Constitutional laws and/or legislation protect the right to education of national minorities are listed in the **Annex 2 9**.*

- Please provide a brief description of the provisions:

Constitution of the Slovak Republic Art. 34

(2) In addition to the right to learn the state language, citizens belonging to national minorities or ethnic groups shall be guaranteed, under the conditions laid down by law, also:

a) the right to education in their language,

Act no. 245/2008 Coll. on upbringing and education (School Act) and on the amendment of certain laws

§ 6 State educational programs

§ 7 School educational program

Act no. 596/2003 Coll. on State Administration in Education and School Self-Government and on Amendments to Certain Acts, as amended

§ 13 Tasks of the state school inspection

§ 16 Inclusion of schools and school facilities in the network

§ 21 Marking of schools or school facilities

Act no. 597/2003 Coll. on the financing of primary schools, secondary schools and school facilities, as amended

§ 4 Financing of public schools

§ 4aa Transport allowance

At the MŠVVaŠ SR and its direct organizations, mainly in the National Institute for Education and in the Methodology and Pedagogy Center (MPC), departments have been created that deal with the issue of education of national minorities in terms of content and further education of pedagogical and professional employees. At the same time, 2 allocated workplaces are created within the MPC for the needs of schools with Hungarian as the language of instruction and for the needs of children and pupils with socially disadvantaged backgrounds / marginalized Roma communities with nationwide scope.

Act no. 138/2019 Coll. on pedagogical staff and professional staff and on the amendment of certain laws

§ 9 Prerequisites for the performance of work activities of a pedagogical employee and a professional employee

§ 18 Mastering the language of a national minority

Act no. 61/2015 on vocational education and training and on the amendment of certain laws

This law applies to all students in vocational education and training, i. j. also to pupils

belonging to national minorities.

It is set out in more detail in Annex 2_9.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

In the Slovak Republic, there is one educational system, an equal and inseparable part of which is the education of national minorities in the mother tongue and the teaching of their mother tongue, including institutional provision with schools and school facilities with the language of instruction of the national minority and the language of the national minority. This means that any change in the content of education in schools with Slovak as the language of instruction is reflected in the content of education in schools with the language of instruction of national minorities

The right to education in the mother tongue or the mother tongue and literature of a national minority has been exercised in the Slovak Republic by the Hungarian, Ruthenian, Ukrainian, German, Russian and Roma national minorities.

MŠVVaŠ SR approved under number 2017-7512 / 20194: 1-1010 Supplement no. 1, which changes the framework curriculum for primary schools with the teaching of the language of a national minority

In 2017, MŠVVaŠ SR approved the relevant framework curricula.

Catalog of target requirements - with effect from 1 September 2018, the Decree of the the MŠVVaŠ SR no. 142/2018 Coll., Amending the Decree of MŠVVaŠ SR no. 318/2008 Coll. on the completion of studies at secondary schools, as amended. Based on the request of the MŠVVaŠ SR, the National Institute for Education has developed the relevant educational standards. The Minister of Education signed on 11.10. 2018, after approval by the Accreditation Commission, a decision to open a study program for the training of Romani language teachers in combination with another subject at the University of Prešov from the academic year 2019/2020. It is a historical moment when the way for the training of Romani language teachers in combination with another subject is opening up in the territory of the Slovak Republic. At the same time, a very unique fact in Europe. The concept of teaching Slovak language and Slovak literature in primary schools with Hungarian as the language of instruction for the years 2018 - 2020 was approved on 3 December 2018. MŠVVaŠ SR approved on 4 April 2019 the Supplement no. 3 to the State Educational Program approved by the MŠVVaŠ SR on 6 February 2015. Subsequently, on 30 November 2019, the MŠVVaŠ SR approved two amendments to the State Educational Program for Primary Schools, which teach in the language of national minorities.

It is set out in more detail in Annex 2_9.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international

community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

The relevant laws are listed in Annex 2_10.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- x Inclusion in mainstream education
- x Provision of language courses
- x Specific training for educational staff
- x Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- x Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- x Accelerated learning programmes
- x Non-formal and/or alternative education programmes
- x Financial support
- x Other innovative measures:

Children of foreigners with a residence permit in the territory of the Slovak Republic, children of asylum seekers and Slovaks living abroad are provided with education, accommodation and meals in schools according to the School Act (ie in kindergartens, primary schools, secondary schools, including special schools) for the same conditions as citizens of the Slovak Republic.

Basic and expanding state language courses are organized for children of foreigners to remove language barriers.

Methodical recommendations for teaching the Slovak language in the basic and extended course of the state language for children of foreigners, information and methodological material Children of foreigners in the educational process in terms of respect for human rights and children's rights, Curriculum of Slovak realities for children of foreigners in the Slovak Republic course) was approved by the MŠVVaŠ SR and included in the list of recommended textbooks in primary and secondary schools.

It is set out in more detail in Annex 2_10.

Please briefly elaborate further on the measures taken:

Relevant measures are addressed by legislation:

Act no. 245/2008 Coll. on Training and Education (School Act) and on Amendments to Certain Acts, as amended

§ 146 Education of foreigners

Act no. 596/2003 Coll. on State Administration in Education and School Self-Government and on Amendments to Certain Acts, as amended

§ 10 District office in the seat of the region

15 Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

Act 131/2001 Coll. on Higher Education Institutions and on Amendments to Certain Acts, as amended
Act no. 422/2015 Coll. on the Recognition of Evidence of Education and Recognition of Professional Qualifications, as amended
Methodological guideline no. 48/2011 for the admission of aliens to carry out research and development activities

It is set out in more detail in Annex 2_10.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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